

9:00 AM

Line 9

25-CIV-07539 HAMID KHAZAELI VS. 21X CAPITAL LP, ET AL

HAMID KHAZAELI
DAVID A BREWER

PRO SE
JOHN S. CLAASSEN

Defendants' Demurrer to First Amended Complaint (C.C.P. § 430.10 & C.C. § 1714.10)

TENTATIVE RULING:

The Demurrer to the First Amended Complaint by Defendants David A. Brewer, et al. ("Defendants") is CONTINUED to January 15, 2027 at 9:00 a.m. in Department 20 (and replaces the anti-SLAPP motion in this case calendared for that date) so the court may first rule on Plaintiff's pending motion for leave to conduct limited discovery regarding the anti-SLAPP motion and then rule on Defendants' pending anti-SLAPP Motion. (See *Salma v. Capon* (2008) 161 Cal.App.4th 1275, 1293-1294 [a plaintiff cannot amend the pleading before the court rules on an anti-SLAPP motion], disagreed with on other grounds in *Barker v. Fox and Associates* (2015) 240 Cal.App.4th 333, 351, fn. 7; see also *Schaffer v. City and County of San Francisco* (2008) 168 Cal.App.4th 992, 1005, citing *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068, 1073 [a plaintiff has no right to amend a cause of action that is dismissed pursuant to an anti-SLAPP motion because allowing leave to amend would completely undermine the anti-SLAPP statute (Code of Civil Procedure section 425.16)].)

No additional papers are to be filed and served by the parties regarding this Demurrer without leave of court.

The motion for leave to conduct limited discovery regarding the anti-SLAPP motion currently on calendar for August 7, 2026 at 9:00 a.m. is not changed.

The anti-SLAPP motion that was calendared for January 15, 2027, is ADVANCED to October 9, 2026, at 9:00 a.m. in Department 20.

No appearances are required, and this shall become the order of the Court by Minute Order.

9:00 AM

Line 10 / UD Line 1

26-UDL-00109 EPA CAN DO VS. ELAINE JOHNSON, ET AL

EPA CAN DO
ELAINE JOHNSON

DEREK W. CHANTLER
PRO SE

Plaintiff's Motion to Compel Responses and for Sanctions

TENTATIVE RULING:

The unopposed motion to compel is GRANTED.

A party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action. Code of Civil Procedure ("CCP") Section 2017.010(a). For discovery purposes, information should be regarded as "relevant to the subject matter" if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof. (*City of Los Angeles v. Superior Court* (2017) 9 Cal.App.5th 272, 288, emphasis added.); *in accord*, *Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546. Code-compliant responses that are complete and substantively responsive are required. *See, Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 and 789.

Defendant failed to respond at all to any of Plaintiff's Form Interrogatories-General and Form Interrogatories-Unlawful Detainer (Sets One). *See*, Chantler Declaration filed on 6/16/2026. Discovery responses are mandatory for the various types of discovery allowed. *See*, CCP §§ 2017.010, 2030.210, 2031.210 and 2033.210. Due to the complete failure to respond, all objections have been waived. CCP §§ 2030.290, 2031.300 and 2033.280. Discovery responses must be properly verified (CCP §§ 2030.250, 2031.250 and 2033.240), and unverified responses are tantamount to not responding at all. *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 635-636.

Plaintiff has also requested monetary sanctions for having to bring the motion, and sanctions are allowed under the code but are in the discretion of the Court. *Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 791. "The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award." *Id.* at 791(citations omitted). Nevertheless, the court is authorized to award as sanctions the moving party's "reasonable expenses," including attorney fees for time spent in research and preparation of the motion and court time in connection with the motion. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.) The discovery motions were accompanied by a proper declaration of counsel establishing the claim for attorney's fees and costs, at reasonable hourly rates, though the Court is using its discretion to reduce the sanctions to a reasonable amount.

Plaintiff requested total fees for 6 hours at \$450.00 hourly, plus the \$60.00 motion cost. The request for sanctions is GRANTED. Defendant shall pay plaintiff \$1,860.00 within 30 days.

The motion to compel is GRANTED. Defendant shall provide verified responses, without objection, to plaintiff's Form Interrogatories-General, Set One, and Form Interrogatories- Unlawful Detainer, Set One, within 5 days of service of the Order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.
